

PHOTOGRAPHY SERVICES AGREEMENT

ILLUMINATE
STUDIOS

Kids Birthday Photography Agreement

ILLUMINATE STUDIOS | Melbourne, Victoria | <https://illuminatestudios.com.au>

Document purpose: This agreement template is designed for client completion and signature for the selected Illuminate Studios package. It should be reviewed and completed before delivery to a client.

Statement of Work

Complete this section for the specific client booking. Placeholder fields are intended to be completed before signature.

Client information

Client legal name(s)	[Client name(s)]
Address	[Client address]
Email	[Client email]
Phone	[Client phone]

Session / event information

Service type	Kids Birthday / Family Event
Date	[Session / event date]
Location(s)	[Location / venue / address]
Start time	[Start time]
End time	[End time]
Primary contact on day	[Name and mobile]

Package selection

Select	Package	Price	Coverage	Included Deliverables
☐	Birthday Essential	\$495	2 hours	80+ edited images; Cake, family, guests and candids
☐	Birthday Classic	\$695	3 hours	150+ edited images; Party details and family portraits
☐	Birthday Deluxe	\$895	4 hours	250+ edited images; Full party coverage

Select	Package	Price	Coverage	Included Deliverables
☐	First Birthday Premium	\$1,095	5 hours	Pre-party details; Family portraits and cake coverage

Fees and payment schedule

Selected package fee	[AUD \$]
Approved add-ons / travel / expenses	[AUD \$ or N/A]
Total fee	[AUD \$]
Booking retainer	10% of total fee unless otherwise agreed in writing: [AUD \$]
Balance / payment terms	Balance due seven (7) calendar days before the event date.
Payment method	Invoice, EFT, card, or other method confirmed by Illuminate Studios

Deliverables

Final images	[Number or package inclusion] edited high-resolution JPEG files
Delivery method	Private online gallery / digital download unless otherwise agreed
Delivery timeframe	Final edited gallery generally delivered within 21 calendar days after the event, subject to final payment and any agreed exclusions.
Special requests	[Shot list / restrictions / notes / privacy instructions]

Client obligations specific to this service

- Ensure a responsible adult is present at all times when children are photographed.
- Ensure the venue permits photography and that any venue rules are provided to Illuminate Studios before the event.
- Notify attendees, parents, guardians, or guests that a photographer will be present where appropriate.
- Identify any child or guest who must not be photographed before the event begins.

Optional portfolio and marketing release

☐ Release granted	Client permits Illuminate Studios to use selected delivered images for portfolio, website, social media, advertising, competitions, publications, and studio promotion.
☐ Release not granted	No promotional release is granted. Illuminate Studios may retain images internally for business records, quality control, archiving, and legal purposes.
☐ Minor/child release granted by guardian	Guardian confirms authority to grant promotional use for the named minor(s): [names].
☐ Restricted release	Permitted use is limited to: [insert limits, e.g. portfolio only, no child names, no school/venue names].

If no option is selected, the default position is that no promotional release is granted.

Service Terms and Conditions

These Service Terms and Conditions apply to the services described in the Statement of Work and selected package schedule.

1. Agreement and parties

- This Photography Services Agreement is between the Client named in the Statement of Work and Illuminate Studios, Melbourne, Victoria, Australia (Provider).
- The Agreement consists of the Statement of Work, the selected package details, these Terms and Conditions, and any written variations signed or approved in writing by both parties.
- Where there is an inconsistency between the Statement of Work and these Terms and Conditions, the Statement of Work prevails to the extent of the inconsistency.

2. Services and deliverables

- Illuminate Studios will provide the photography services and deliverables described in the Statement of Work and selected package.
- Unless otherwise stated, deliverables are edited digital JPEG image files delivered through a private online gallery or digital download link.
- Raw files, unedited files, rejected images, duplicate frames, test shots, and internal editing files are not included and will not be supplied unless expressly agreed in writing.
- Image counts listed in packages are minimum estimates unless expressly marked as exact. Final image quantity may vary depending on event flow, access, light, guest cooperation, weather, and other practical circumstances.

Final edited gallery generally delivered within 21 calendar days after the event, subject to final payment and any agreed exclusions.

3. Fees, booking retainer, and payment

- A signed Agreement and booking retainer are required before the booking is secured and before services are performed.
- The booking retainer is credited toward the total package price. Unless otherwise stated in the Statement of Work, the booking retainer is 10% of the total package fee.
- All prices are in Australian dollars and include GST only if Illuminate Studios is registered and required to charge GST at the time of invoice.
- Additional services, add-ons, overtime, travel, accommodation, special retouching, printing, albums, commercial usage, permits, parking, tolls, and other approved expenses are charged in addition to the package fee unless expressly included.
- Illuminate Studios may withhold delivery of final images or products until all due invoices have been paid in cleared funds.

4. Rescheduling and cancellation

- Rescheduling and cancellation terms are set out in the Statement of Work. Any cancellation or rescheduling request must be provided in writing as soon as practicable.
- Any retained amount, cancellation charge, or rescheduling charge is intended to reflect reasonable administration, preparation, work already performed, booked-out availability, and lost opportunity to accept other work.
- Nothing in this Agreement excludes, restricts, or modifies consumer guarantees, remedies, or rights that cannot be excluded under Australian Consumer Law or other applicable law.
- If Illuminate Studios must cancel due to circumstances within its control and cannot provide a suitable replacement or reschedule, Illuminate Studios will refund amounts paid for services not supplied, subject to any rights and obligations that cannot be excluded by law.
- One reschedule is permitted without an additional fee if requested at least fourteen (14) calendar days before the event date, subject to availability. Rescheduling within fourteen (14) days may require a new retainer or reasonable rescheduling fee if Illuminate Studios cannot reallocate the original date.
- If Client cancels after booking, Illuminate Studios may retain the booking retainer to cover reasonable administration, planning, and lost booking opportunity. If cancellation occurs within seven (7) calendar days of the event, Illuminate Studios may invoice reasonable costs already incurred and up to 50% of the package fee, less avoidable costs, to the extent permitted by law.

5. Client obligations and cooperation

- Client must provide accurate dates, times, locations, access details, parking instructions, venue requirements, and key contact details.

- Client is responsible for obtaining any venue, location, property, council, permit, guardian, guest, or third-party approvals required for the services unless expressly agreed otherwise in writing.
- Client must ensure reasonable cooperation by participants, guests, venue staff, and any responsible adults. Illuminate Studios is not responsible for reduced coverage caused by lack of cooperation, restricted access, late arrival, shortened time, unsafe conditions, or third-party interference.
- Client must identify key people, key moments, sensitive situations, privacy restrictions, cultural restrictions, and must-have groupings before the event or session.

6. Safe working environment

- Client agrees to use best efforts to provide a safe, respectful, and appropriate working environment for Illuminate Studios and any staff or subcontractors.
- Illuminate Studios may pause or leave a session or event where there is aggression, harassment, discrimination, intoxication, unsafe behaviour, threat of harm, property risk, or any condition that reasonably places people or equipment at risk.
- If unsafe or inappropriate behaviour prevents completion of the services, Client remains responsible for payment for services performed and any reasonable costs incurred. Illuminate Studios is not liable for incomplete coverage caused by unsafe conditions or Client/guest conduct.

7. Creative style, editing, and approvals

- Client acknowledges that photography is creative and subjective, and confirms that Client has reviewed and is satisfied with the general portfolio style of Illuminate Studios before booking.
- Illuminate Studios retains creative and professional control over image selection, editing style, crop, colour treatment, black-and-white conversions, and final presentation.
- Standard editing includes image selection, exposure correction, colour correction, contrast, crop, and general style consistency. Extensive retouching, object removal, compositing, restoration, or design work is not included unless expressly agreed in writing.
- If proofs, albums, prints, or design samples are provided for approval, Client must review and respond within ten (10) calendar days unless another timeframe is stated. Late changes may incur additional fees.

8. Copyright and client usage licence

- Unless otherwise agreed in writing, copyright in all photographs and related works remains owned by Illuminate Studios or the relevant photographer.
- After final payment, Client receives a non-exclusive, perpetual, personal-use licence to download, store, display, share with family and friends, print for personal use, and post the delivered images online with reasonable attribution where practical.
- Client must not sell, license, commercially exploit, enter into competitions, alter, apply heavy filters, misrepresent, or provide images to vendors, publications, brands, commercial entities, or media outlets for commercial use without written permission from Illuminate Studios.
- Commercial, editorial, vendor, advertising, brand, venue, publication, or business usage must be licensed separately in writing.

9. Portfolio and marketing release

- Portfolio, website, social media, advertising, publication, competition, and promotional use by Illuminate Studios is permitted only if Client grants the optional release in the Statement of Work or in a separate release form.
- Where children, minors, guests, employees, or third parties appear in images, Client is responsible for obtaining appropriate permissions where Client requests publication, commercial use, or distribution beyond personal use.
- If no release option is selected, the default position is that no promotional release is granted, but Illuminate Studios may retain the images internally for business records, quality control, archiving, and legal purposes.

10. Privacy, sensitive information, and minors

- Illuminate Studios will use Client contact information and booking information for booking administration, service delivery, invoicing, communications, and business records.
- Client must notify Illuminate Studios in writing before the session or event if there are safety, privacy, child-protection, family-law, intervention-order, school, venue, or other restrictions affecting photography, publication, or delivery of images.
- For sessions involving minors, a parent or legal guardian must be present unless otherwise agreed in writing and legally appropriate.

11. Travel, expenses, meals, and accommodation

- Travel within 20 km of Melbourne CBD is included unless otherwise stated. Travel beyond that area, parking, tolls, permits, accommodation, flights, rental vehicles, and other reasonable travel expenses are quoted separately or invoiced at cost where approved.
- For extended events, weddings, regional bookings, or multi-location coverage, Illuminate Studios may require breaks, a vendor meal, safe equipment storage, parking, and reasonable travel time between locations.
- Destination or regional bookings may require accommodation in a safe and reasonably proximate location. Travel arrangements must be agreed in writing before booking is confirmed.

12. Overtime and additional work

- Additional coverage requested on the day is subject to availability and must be approved by Client or an authorised contact before being incurred where reasonably practicable.
- Unless otherwise agreed, overtime is charged at \$250 per hour for portraits and events, and \$300 per hour for weddings, billed in 30-minute increments after the first additional 15 minutes.
- Additional editing, retouching, album changes, print products, vendor licensing, commercial usage, rush delivery, and special requests are quoted separately.

13. Equipment failure, loss, and image archive

- Illuminate Studios uses reasonable professional care, including ordinary backup practices, but cannot guarantee against every equipment failure, file corruption, theft, accident, or event outside reasonable control.
- If images are lost, damaged, or not delivered due to circumstances within Illuminate Studios' control, Illuminate Studios' liability is limited to re-performance where reasonably possible or a refund proportionate to the affected services, subject to rights that cannot be excluded by law.
- Delivered galleries may remain available for at least thirty (30) days. Client is responsible for downloading and backing up delivered images. Long-term image archiving is not guaranteed unless purchased or agreed in writing.

14. Substitute photographer and subcontracting

- Illuminate Studios may use staff, assistants, second photographers, editors, or subcontractors to perform part of the services, provided Illuminate Studios remains responsible for the services under this Agreement.
- If the primary photographer becomes unavailable due to illness, emergency, accident, family emergency, force majeure, or circumstances beyond reasonable control, Illuminate Studios may provide a suitably qualified replacement where practicable.

15. Force majeure

- Neither party is liable for delay or failure to perform caused by events beyond reasonable control, including natural disaster, extreme weather, illness, accident, government restriction, venue closure, transport disruption, emergency, power failure, public health order, or similar circumstances.
- The parties will use reasonable efforts to reschedule or adjust services where force majeure affects performance. Payment obligations for services already performed and reasonable costs incurred remain payable.

16. Limitation of liability

- To the maximum extent permitted by law, Illuminate Studios is not liable for indirect, consequential, special, exemplary, or punitive loss, including loss of profit, loss of opportunity, emotional distress, or reputational loss.
- To the maximum extent permitted by law, Illuminate Studios' aggregate liability under or in connection with this Agreement is limited to the amount paid by Client for the affected services.
- Nothing in this Agreement excludes liability that cannot be excluded under Australian Consumer Law or other applicable law.

17. Disputes, legal costs, and governing law

- The parties will attempt in good faith to resolve any dispute by written notice, discussion, and reasonable exchange of information before commencing formal proceedings, except where urgent relief is required.
- This Agreement is governed by the laws of Victoria, Australia. The parties submit to the courts and tribunals of Victoria and any competent appellate courts.
- If a party must take legal action to enforce this Agreement, legal costs and expenses may be recoverable only as permitted by law, court order, tribunal order, or written settlement.

18. Entire agreement and variations

- This Agreement records the entire agreement between the parties concerning the services and replaces prior discussions, quotations, emails, or proposals to the extent inconsistent.
- Any change to package, price, inclusions, date, location, licence, delivery, or terms must be agreed in writing by both parties.
- If any provision is invalid or unenforceable, the remaining provisions continue to operate to the maximum extent permitted by law.

19. Category-specific requirements

- Illuminate Studios will use reasonable efforts to avoid photographing any person identified in writing before the event as not to be photographed, but Client remains responsible for guest communication and any consent obligations.
- Coverage is documentary in nature and depends on available light, venue access, crowd movement, child cooperation, and event flow.
- A safe working environment must be maintained around children, guests, equipment, food service areas, and entertainment zones.

Acceptance and Signatures

By signing below, the parties confirm they have read, understood, and agree to be bound by this Agreement, including the Statement of Work, selected package details, and Terms and Conditions.

Client signature	Illuminate Studios signature
Client full name	Representative full name
Date	Date
Additional client signature	Position
Additional client full name	Business / ABN
Date	Email / phone